

Court No. - 21

Case :- WRIT - C No. - 173 of 2022

Petitioner :- Shyam Soni

Respondent :- Managing Director U.P. Power Corporation Limited
And 2 Others

Counsel for Petitioner :- Ram Singh

Counsel for Respondent :- Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Shekhar Kumar Yadav,J.

Counsel for the petitioner states that despite best efforts, he could not serve copy of the writ petition upon the counsel representing respondent nos. 2 and 3.

Issue notice to respondent nos. 2 and 3, returnable at an early date.

(Shekhar Kumar Yadav, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.1.2022

Jaideep/-

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Counsel for Petitioner :- Ram Singh

Counsel for Respondent :- Krishna Agarawal

Hon'ble Siddhartha Varma,J.

Hon'ble Dinesh Pathak,J.

Notices were issued to the respondents no. 2 and 3. In compliance thereof the petitioner has taken steps on 4.2.2022.

There is an office report dated 9.3.2022 that neither the undelivered cover nor the acknowledgement has been received back. It would be in the fitness of things that the Court waits for the return of the notices for 10 days more.

Place this petition as fresh on 29.3.2022.

Order Date :- 11.3.2022

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(Dinesh Pathak,J.) (Siddhartha Varma,J.)

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Counsel for Respondent :- Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

It is stated at the Bar that Sri Gaurav Singh is counsel for Dakshinanchal Vidyut Vitaran Nigam Limited, Banda.

Counsel for the petitioner shall serve notice of the instant petition upon him within three days and also inform him in writing about the next date fixed in the instant case.

Put up as fresh on 7.4.2022.

(Dr. Y. K. Srivastava, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.3.2022

Jaideep/-

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Respondent :- Managing Director U.P. Power Corporation Limited And 2 Others

Counsel for Petitioner :- Ram Singh

Counsel for Respondent :- Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Neeraj Tiwari,J.

The instant writ petition has been filed praying for a mandamus commanding respondents 2 and 3 to release commercial electric connection to the petitioner's shop situated in the house of Sushil Kumar in Mohalla Chowk Bazar Rajendra Market, City Banda.

It appears from the facts stated in the writ petition that the petitioner is tenant of the premises and its landlord is Sushil Kumar. There is some litigation pending between them in the civil court.

Sri Gaurav Singh, learned counsel for respondents no.2 and 3 states that the landlord has not given no objection certificate for release of electricity connection in favour of the petitioner and it is for the said reason that the same has not been released so far. He further states that in case the petitioner complies with the provisions of Clause 4.4 of the U.P. Electricity Supply Code, 2005 and submit indemnity bond, his application will be considered in accordance with law.

Learned counsel for the petitioner states that the petitioner will comply with the above requirement.

Accordingly, without expressing any opinion on merits, the instant petition is disposed of with liberty to the petitioner to file indemnity bond and comply with the other requirements of law so that his application is considered by respondent no.2 in accordance with law, after due notice and opportunity of hearing to him as well as the landlord/owner of the premises.

The order has been passed in the presence of Sri Krishna Agarwal, counsel for respondent no.1.

(Neeraj Tiwari, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.4.2022

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